

		584.) “Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it.” (<i>Ibid.</i>) Here, there is no evidence that Defendant waived its right to arbitration. Defendant not only reserved the right to compel arbitration, but it already exercised that right. Plaintiff fails to cite any authority showing that the submission of case management statement (which a party is required to file under the Rules of Court) results in “waiver” merely because the participant has selected “a jury trial” over a “nonjury trial” under section 5. Section 5 presumes that the court will hold a case management conference and set the matter for a jury or non-jury (bench) trial. However, when the arbitration petition is granted, this case is stayed and the court does <i>not</i> proceed with the case management conference. Plaintiff has not raised any other arguments regarding the enforceability of the agreement. The Court finds Plaintiff has not met his burden of showing there is a defense to enforcement. The motion to compel arbitration is granted. Plaintiff is ordered to arbitrate all of his claims. The action is stayed pending final resolution of the arbitration. (Code Civ. Proc. § 1281.4.) The Case Management Conference is vacated. The Court sets an arbitration status conference for 12-4-26 at 9:00 a.m. in Department C11. Defendant shall give notice of the ruling. Case Management Conference – off calendar
5	Dyer Industrial, LLC vs. Impact Advertising, Inc. 2022-01291920	Motion for Entry of Judgment Withdrawn
6	Freeman vs. Espinoza 2025-01511842	Motion for Partition of Real Property by Sale and Appoint a Partition Referee